

District- Jessore

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr Justice Md Atoar Rahman

Civil Revision No 4435 of 1999

Sreemati Sova Rani Halder

...defendant-respondent-petitioner

- versus-

Gouri Ghona Charitable Dispensary
represented by Shahabuddin Sarder

...plaintiff-appellant-opposite party

No one appears

... for the defendant-respondent-petitioner

Mr. Md. Abdul Barik, Advocate

....for the plaintiff-appellant-opposite party

Heard on: 18.01.2024 and 22.01.2024

Judgment on: 31.01.2024

This Rule was issued upon an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite party No 1 to show cause as to why the judgment and decree dated 30.09.1999 passed by the learned Subordinate Judge, now Joint District Judge, Second Court, Jessore in Title Appeal No 152 of 1995 reversing those dated 28.08.1995 passed by the learned Assistant Judge, Keshabpur, Jessore in Title Suit No 70 of 1994, should not be set aside and/or passed such other or further order(s) as to this court may seem fit and proper.

During issuance of the Rule an order was passed staying operation of the impugned judgment and decree.

The short facts for the purpose of disposal of the Rule are that the plaintiff-appellant-opposite party Ghourighona Charitable Dispensary, representing by its secretary, (hereinafter called the opposite party) filed the Title Suit No 70 of 1999 in the Court of Assistant Judge, Keshabpur, Jessore seeking for a decree of recovery of khas possession to the suit land by evicting the defendant-respondent-petitioner (hereinafter called the petitioner) alleging *inter alia* that one Bipin Bihari Halder being owner and possessor of the suit land, described in the schedule to the plaint, gifted to the opposite party by a registered deed dated 10.12.1962 and handed over its possession to it; that the chairman of the local union parishad had illegally transferred the suit land to the petitioner by registered deed dated 02.03.1977 for which the present opposite party filed Title Suit No 378 of 1978 against the present petitioner in the Court of Second Munsiff, Jessore which was transferred to the Court of Assistant Judge, Keshabpur, Upazilla and re-numbered as Title Suit No 391 of 1984; that the said title suit was dismissed on contest against which the opposite party preferred Title Appeal No 100 of 1986 in the Court of District Judge, Jessore; that the title appeal was allowed and sent the suit on remand to the trial court for trial afresh; that after fresh trial the suit was decreed on 01.03.1990 and the Kabla deed dated 02.03.1977 was declared illegal,

without consideration and void and the opposite party also obtained a decree of partition in preliminary form which was made final and the opposite party got the khas possession through court by dint of the Title Execution Case No 1 of 1993. But on 10th Jaista, 1401 BS the three sons of the petitioner with the collusion of others on behalf of the petitioner entered illegally into the suit land and erected some makeshift houses thereto. The opposite party requested to leave the suit land but she refused to do so and hence the suit.

The petitioner contested the suit by filing written statement denying all the material facts made in the plaint contending, *inter alia*, that along with other land the suit land belonged to Bipin Bihari Halder who gifted 1.14 acres including the suit land by an unregistered deed to the petitioner, nephew's wife, and handed over possession to her; that the petitioner has been living with family on the suit land by erecting homestead; that on the basis of a resolution Advocate Ali Hasan, the then local union parishad chairman, executed and registered a Kabla deed in favour of the petitioner on 02.03.1977 and confirmed her previous possession; that thereafter one SM Shahabuddin filed Title Suit No 391 of 1984 which was dismissed; that against which a title appeal was filed and this defendant did not contest the said appeal as locally it had been settled that the defendant would get the homestead portion and rest would be vested upon the opposite party and Shahabuddin and Siddiqur Rahman would execute and register deed in

favour of the petitioner, if necessary; that the opposite party has been living in the middle portion of the suit land with her husband and sons; that the execution case was collusive and no Advocate commissioner ever had gone to the suit land; that the opposite party has no right, title, interest and possession over the suit land and, as such, the suit was liable to be dismissed.

Learned Assistant Judge after hearing dismissed the suit holding that although the opposite party had right and title in the suit land but it had failed to prove its dispossession as alleged against which the opposite party preferred the Title Appeal No 152 of 1995 in the Court of District Judge, Jessore. On transferred the appeal was heard by the Subordinate Judge, Second Court, Jessore who upon hearing both the sides was pleased to allow the same by the impugned judgment and decree dated 30.09.1999.

Being aggrieved by and dissatisfied with the above judgment and decree the petitioner moved this court with an application under section 115(1) of the Code of Civil Procedure and obtained the present Rule and order of stay.

No one appears on behalf of the petitioner to press the Rule.

Mr Md Abdul Barik, the learned Advocate appearing on behalf of the opposite party has opposed the Rule.

I have heard the submissions placed by the learned Advocate on behalf of the opposite party and perused the record along with the impugned judgment and other connecting materials.

These facts are not disputed that earlier the opposite party being plaintiff had filed the Title Suit No 378 of 1978 (re-numbered as Title Suit No 391 of 1984) against the present petitioner for declaration and partition which was ultimately decreed in preliminary form and the deed of the petitioner was declared void. It is also not disputed that the preliminary decree was made final and in respect of such decree the present opposite party being decree holder filed Title Execution Case No 1 of 1993 making the present petitioner as judgment debtor that was disposed of. In the present case both the courts below on the basis of such decree found that not the petitioner, but the opposite party had the title over the suit land. Upon examination of the report submitted by the concerned court officer after delivery of possession under Order XXI rule 35 (Ext 4ka) & final order dated 05.01.1994 passed by the learned Assistant Judge in the above execution case with full satisfaction (Ext 4) and other connected evidence on record it appears that learned Judge of the appellate court below rightly found that by dint of such execution case the opposite party was re-instated on 22.11.1993 in the suit land having evicted the petitioner by the civil court. Admittedly during filing of the present suit on 27.07.1994 the petitioner was in possession of the suit land. Thus, it is clear that after 22.11.1993 the

opposite party was further dispossessed by the petitioner and the learned Judge of the appellate court rightly found that the learned Judge of the trial court had wrongly held that on 22.11.1993 the opposite party had not been re-instated in the suit land and subsequently was not dispossessed by the petitioner.

In view of the foregoing discussions and facts and circumstances of the case it appears that the learned Judge of the appellate court bellow in deciding the appeal by the impugned judgment and decree did not commit any error of law resulting in an error in his decision occasioning failure of justice and, as such, there is no substance and merit in the Rule and accordingly, the same is liable to be discharged.

In the result, the Rule is discharged without any order as to cost. the impugned judgment and decree dated 30.09.1999 passed by the learned Subordinate Judge, now Joint District Judge, Second Court, Jessore in Title Appeal No 152 of 1995 reversing the judgment and decree dated 28.08.1995 passed by the learned Assistant Judge, Keshabpur, Jessore in Title Suit No 70 of 1994 is hereby affirmed and the order of stay granted at the time of issuance of the Rule is recalled and vacated.

Let the lower courts' records along with a copy of this judgment be transmitted at once.